

CITATION: Hossain v. City of Toronto, 2016 ONSC1045
 COURT FILE NO.: 11-CV-424246
 Heard: January 13, 2016

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Hossain v. City of Toronto

BEFORE: Master Joan Haberman

COUNSEL: Cosgrove, A.: for moving parties, City TV and Rogers
 Goen, N. for moving party, City of Toronto
 Munn, T. for responding party

REASONS

Master Haberman:

- [1] On New Year's Eve, December 31, 2010, Abir Hossain and his university friend, Mohammed Tarafder, were among those who joined the merry-makers at Nathan's Phillips Square. Shortly after midnight, while the crowds were dispersing, Hossain slipped and fell on the walkway, breaking his left humerus. As a result, he brought suit against the City of Toronto, the owner of the Square, and against City TV/Rogers, who hosted the event.
- [2] Both defendants now seek security for costs on the basis of Rule 56.01(1)(a), claiming that Hossain is now ordinarily resident in Halifax, Nova Scotia. Hossain claims that as he is impecunious and that there is merit to his case, the just order is that no order for security for costs be made in favour of either party.
- [3] On the basis of the evidentiary record before me, I have concluded that Hossain has not established impecuniosity. He has also failed to establish that he has a good chance of success on the merits against either defendant. Accordingly, I am ordering that he post security for costs in favour of each of them.

EVIDENTIARY ISSUE

- [4] Hossain delivered two affidavits in response to these motions and he was examined for discovery, but the first tranche of his evidence takes the form of an affidavit from his counsel's law clerk. Much of her evidence appears to be based on what she was told by

plaintiff's counsel. To the extent that her evidence of any of these points is in issue, it cannot be relied on, as counsel is effectively putting in his own evidence through her mouth. This contravenes the rule against being both a witness and counsel in the same proceeding.

- [5] Further, Hossain, having affirmed two subsequent affidavits, has never affirmed that he read and accepts her evidence as true. As a result, to the extent that any of this evidence is contentious and not repeated by Hossain in his, it is hearsay so must therefore be read with care. To the extent that the clerk's evidence conflicts with Hossain's, his is to be preferred.

THE LAW

- [6] For the most part, the law in this area is very well established. The discussion begins with the two-part test articulated in *Hallum v. Canadian Memorial Chiropractic College*, [1989] OJ No. 1399, which provides that the moving party must first demonstrate that there is good reason to believe the plaintiff falls into one of the enumerated categories in Rule 56.01(1).
- [7] Once that has been achieved, the moving party has a *prima facie* right to the order sought, subject to part two of the test. At that point, the onus shifts to the defendant. Depending on his circumstances, where the motion is brought under subsection (a), the plaintiff can either try to demonstrate that he has sufficient assets in the jurisdiction to satisfy a cost order or he can claim that he is impecunious.
- [8] In either case, he is required to do far more than simply state a conclusion or make a declaration as to the state of his finances. A plaintiff has a positive obligation to make out his case with evidence. His evidence must be thorough, clear and detailed, so the court can assess his assets and liabilities, his income and expenses and reach a conclusion about his ability, or inability, to post security for costs.
- [9] As I pointed out in *Shuter v. TD Bank* [2007] OJ No. 3435, a plaintiff responding to a motion of this kind must meet a high evidentiary threshold, which can only be reached by *tendering complete and accurate disclosure of the plaintiffs, income, assets, expenses, liabilities and borrowing ability*. He is in the best position to make his situation clear, with full particularity. At the very least a party must provide his **most recent tax returns, complete banking records and records attesting to income and expenses** (see *Uribe v. Sanchez*, [2006] OJ 2370; *Morton v. Canada (Attorney General)*(2005), 75 OR (3d) 63). Failure to provide a complete evidentiary record to support a plea of impecuniosity will be fatal to a plaintiff's ability to rely on it (see *Tallarico-Robertson v. Communique Group Inc.*, [2004] OJ No. 1648)

- [10] Where impecuniosity is relied on, there should be no unanswered material questions regarding the plaintiff's financial status, and the burden is on the plaintiff to bring all of that evidence forward.
- [11] The court distinguishes impecuniosity from financial hardship. The fact that posting security may be difficult is not enough to cross the threshold.
- [12] Regardless of whether a plaintiff seeks to establish sufficient assets or impecuniosity, a consideration of the merits should be a part of the court's consideration when attempting to reach the order that is just in each case (*Padnos v. Luminart Inc.*, (1996) 32 O.R. (3d) 120), as the Rule requires.
- [13] The significance of the merits will increase as one descends down the subsections of Rule 56.01(1) and will also depend on the stage of the case at the time the motion is brought. If the action has not yet gone through the discovery stage, there is generally not enough known about the merits for the court to form an impression about which party is likely to succeed at trial.
- [14] Similarly, if credibility is a significant issue, the court will have a difficult time making an assessment as to the likely outcome at trial, so the importance of merits is also reduced.
- [15] When a plaintiff is able to demonstrate impecuniosity, what they must prove regarding the merits is a less onerous task than when they are unable to meet the test. This approach recognizes the court's desire to avoid putting a plaintiff with a potentially meritorious claim in a position where they are unable to proceed because they are impecunious, so truly unable to post security. If their case is not entirely devoid of merit, the court tends to favour a path that gets the case to trial.
- [16] On the other hand, where a party is not actually impecunious, but trying to avoid having to post security, the court imposes a higher burden on them regarding the merits. In such a case, they have to show that they have a good chance of success before the court will accept that the just order in their case is no order for security at all (see *Bruno Appliance and Furniture Inc. v. Cassels Brock & Blackwell LLP*, 2013 CarswellOnt 1630, and on appeal, 2013 CarswellOnt 9210; *Stojanovic v. Bulut*, 2011 ONSC 874; *Cigar500.com Inc. v. Ashton Distributors Inc.*, [2009] OJ No. 3680, *Zeitoun v. Economical Insurance Group* (2008), 91 OR (3d) 131).
- [17] In assessing whether the plaintiff has met this onus the court is charged with reviewing all relevant facts that emerge from the evidentiary record. This necessarily involves a consideration of all elements of the claim, including liability, damages and causation. Though a plaintiff may be able to establish that there is a good chance that a defendant will be found liable for the accident he complains of, until he can also show that he

sustained damages in the accident and that the damages he now seeks to recover were caused by the accident, he will not be well placed to show that, over all, he has a good chance of success of getting judgement for the relief he seeks.

[18] It is with these principles in mind that I have approached the evidence in this case.

A BIT ABOUT HOSSAI

[19] Hossain was born in 1980 in Bangladesh and came to Canada in 2002 to attend university. He has no family here. From here on in, his evidence about himself, his employment history and his financial status is sketchy at best.

[20] He studied at St. Xavier University in Nova Scotia, graduating in computer science in May 2004. It is not clear when he left Halifax or how he graduated from what he described as a 4-year program in two years. There are gaps in the evidence as to whether Hossain worked or continued his education in Halifax after May 2004. There is, in fact, no evidence about what he did after he graduated in 2004 until he moved to Toronto four years later.

[21] Although he took all of his university courses and wrote all of his exams in English, Hossain asked for the assistance of an interpreter when he was examined for discovery in 2013. As a result, there is no question that he understood what he was asked and was in a position to express himself fully and properly.

[22] Hossain states that he moved to Toronto in 2008, after having apparently spent six years in Halifax. He began working in Toronto around April 2008 in an IT call centre, as an information technology consultant with Millennium Care. They in turn contracted him to Juniper Networks, to provide them with IT support. Though it is unclear what he was doing before that, his 2006 tax returns suggest he had income of just under \$30,000 that year.

[23] Hossain claims that he did not work for 8 weeks following the 2011 accident and that he returned at that time on light duties. His employment was terminated in January 2012, a year after the accident, as he claims his ability to perform work-related tasks was impaired. He has not explained in what manner it was impaired.

[24] It is also not clear that this is an accurate version of the facts regarding Hossain's dismissal. For about 9 months in 2011-2012 (or a year according to Dr. Kwok's report of October 24, 2014), Hossain was actually in Bangladesh. He traveled to his home country in June 2011, where his now late father was apparently a physician. He states that his father treated his injuries and had access to a private physiotherapist for his use, as well.

- [25] Based on the dates Hossain provided for when he left and how long he was away, it appears that he did not return to Canada until Around June 2012, so he was terminated from Millennium while he was still in Bangladesh.
- [19] While Hossain's evidence also suggests that he did not resume work until November 2012, this is not entirely accurate. Collins Barrow, a firm of chartered accountants retained to calculate his past and future loss of income say in their report that Hossain told them that, from January 2012 until approximately mid-November 2012 he *held numerous contact positions in IT Support while seeking suitable employment*.
- [20] Hossain, himself, says nothing about what he did during this intervening period is his evidence. These dates conflict with when he says he was still in Bangladesh, being cared for by his father. He does not state if he was working while in Bangladesh.
- [21] In November 2012, Hossain secured employment in Toronto with NORR Limited as a systems analyst. According to the law clerk's evidence and the chartered accountants' report, this was a "lighter position" for Hossain, as he was not required to lift heavy objects. Presumably, this is what he told them. He earned \$41,600 in that position. However, according to the law clerk, his employment was again terminated, though she does not say when or why Hossain was having difficulty performing these lighter duties.
- [22] Hossain states that he worked at NORR until April 2014, so for almost a year and a half, when he was laid off. He states that he was again having difficulty performing his job due to his injuries but he not explain what it was that he was required to do that he was no longer able to do. It is also not clear from the medical evidence what the nature and extent of this ongoing disability involved. It is important to note that the injury was to Hossain's left arm in January 2011, and his is right-dominant.
- [23] Hossain was examined for discovery in April 2013, while still working and resident in Toronto. However, his father became ill in 2013 and passed away on December 15, 2013. Hossain left for Bangladesh on December 22, 2013 to grieve with the family, returning on January 31, 2014. He met and married his wife while in Bangladesh, in January 2014, but left her behind when he returned to Toronto, with plans for her to join him in August 2015.
- [24] Hossain was still in Bangladesh in January 2014, when mediation took place and he participated by video. It appears he was in Bangladesh again later that year. According to Dr. Boynton, who examined Hossain in May 2014, she was told by Hossain that he was planning to return to Bangladesh again a few weeks later. It is not clear if NORR knew of these plans before they terminated his employment with them or if the lengthy absence in December 2013-January 2014 was a factor in their decision.
- [25] Having reviewed the evidentiary record, I cannot say I have a clear handle on:

- The dates for all of Hossain's trips to and from Bangladesh;
- when he was actually in Toronto and available for work in the months and years following his fall;
- whether this termination from two positions in Toronto was, in fact, the result of his inability to perform at work and if so, in what manner; and
- whether his lengthy absences from Toronto were a pivotal factor in his being laid off twice.

[26] These gaps in the evidence impact on my ability to find that Hossain has a good chance of success on the merits, in terms of the damages he may be able to claim. I was taken to no medical evidence during the course of the hearing that explains how an injury to his left elbow had a sufficiently significant impact on Hossain's health to cause him to be terminated from two positions, one more than three years post-accident. I am also concerned that he was away from Toronto for long periods of time, including at the time he was let go from the first position. His failure to address any of this in his evidence is not helpful.

[27] As a result, I conclude that, based on the record before me, Hossain's past and future loss of income claims are not headed in the direction that Hossain would wish.

WHERE IS HOSSAIN ORDINARILY RESIDENT

[28] Hossain became a Canadian citizen in May 2015. He was a landed immigrant at the time of the accident.

Evidence that Hossain relies on

[29] Hossain claims that he became ordinarily resident in Toronto in 2008, and that he has been so ever since. From 2008 to May 2013, he lived with friends at 87 Pharmacy Ave., in Scarborough, so that was his address on the date of the accident. In June 2013, he moved to 2935 St. Clair Ave. with his friend, Mohammed, where he remained until June 2015, when he moved to Halifax.

[30] Though he hasn't maintained a residence in Toronto, Hossain claims that he continues to contribute to the internet bill at the last shared apartment. The only evidence of this is one internet bill, for \$45.19, dated July 1, 2015 – two weeks after he moved to Halifax. It states on the face of the bill that Hossain was not to pay it upon receipt as he had authorized the service provider to charge the amount to his credit card. It would have been charged on July 2. I was not taken to any documents to show me that this, in fact, occurred.

- [31] No further internet bills were produced so it is quite possible that this was the last time Hossain paid for the service and that he then cancelled it after moving. It is also possible his contract with the service provider required that he continue to pay for a certain period of time. There is no evidence that he contributes to any other costs associated with that residence, or that he has continued to pay part of the internet bill.
- [32] Hossain also states that he has maintained his Ontario driver's licence with his Ontario address. However, Nova Scotia legislation states that he can rely on his Ontario licence for 90 days only. It is therefore quite likely that he has also obtained his Nova Scotia licence by now. The question is whether Hossain will renew his Ontario licence before it expires.
- [33] Hossain has retained his Toronto phone number and that is how his counsel states that he communicates with him. It is clear, however, that he also maintains a cell phone with a "902" area code. This is his Halifax number. Hossain included his FIDO bills in his materials and it shows calls made from both numbers, the higher share of the cost attributable to the Halifax number since he began to live and work there.
- [34] According to the law clerk's evidence Hossain only took the job in Halifax after being unable to locate work in Toronto and he plans to return in one year, or by June 2016. It is unclear why Hossain believes that his ability to find work in Toronto will be any different at the end of the one year period than it was when he felt bound to relocate to Halifax for work.

Evidence that the defendants rely on

- [35] Hossain is currently employed as a systems administration senior consultant at NTT in Halifax. His bi-weekly salary is \$2307.69, or \$60,000 per year. Based on the record before the court, this appears to be more than he has made since immigrating to Canada.
- [36] His current employer provided Hossain with a relocation allowance of up to \$2000. This was intended to cover his travel and moving expenses. However, unless he remains with the company for a full year, he is required to reimburse them for any such payments made.
- [37] Hossain rented an apartment in Nova Scotia. He currently resides there with his wife, who arrived in Canada in August 2015, and their infant, born in November 2015. His one-year lease runs from June 11, 2015 and is renewable on a yearly or monthly basis. His insurance certificate and TD Trust account both have his Halifax address as his address for mailing.
- [38] Hossain has no family in Toronto. He has presumably has friends in Halifax, having completed his university studies there, and friends in Toronto.

- [39] There is no evidence that Hossain keeps a current bank account, a car or a place of residence in Toronto. There is no evidence that he stored any of his belongings in Toronto before he moved to Halifax in anticipation of having them here for his return.
- [40] While Hossain has expressed an intention to return to Toronto within one year of having moved to Halifax, that is wholly dependent on his ability to find work in this city. According to him, he had difficulty doing that before and that was why he moved. He is now earning considerably more than he did while living in Toronto. There is no evidence before the court to explain why he believes the market for his skills in Toronto will have changed at the end of the one-year period.
- [41] On the record before the court, there are very few indicia connecting Hossain to Toronto at this time. I am not satisfied that he is ordinarily resident in Ontario as a result. In view of this, the defendants have made out a prima facie right to an order for security for costs, subject to the court's view of the merits and whether the order that is just demands that no security be posted.

HOSSAIN'S FINANCIAL PICTURE

- [42] A review of the chartered accountant's report indicates that they had access to more relevant documentation than this court did, in so far as demonstrating the full scope of Hossain's financial status. They refer to having reviewed his tax returns from 2006-2012, whereas only certain parts of his returns were produced for that period in the motion materials. I was also given no financial records for 2013 or 2014.
- [43] The records that were produced raise issues. It is not clear how Hossain earned \$29,031 in the tax year 2006, which is two years after he graduated but two years before he moved to Toronto. It is also unclear how he earned \$515 in capital gains that year.
- [44] For that year and several subsequent years, it appears Hossain was disposing of shares and generating capital gains or losses. Where did the money come from to purchase these shares and what is their status now? This certainly raises questions – none of them answered in the evidence- about his financial resources.
- [45] Having reported almost \$30,000 of income in 2006, Hossain then reported no income at all in 2007.
- [46] The accountants also mention that they received a letter from NORR, dated October 24, 2013 and a medical report from Dr. Kwok, dated October 24, 2013. As the merits of the case are in issue on every motion for security for costs, having the NORR letter could have been of assistance.

- [47] While Dr. Kwok's report was filed, he refers to Hossain having been seen by Dr. Ahn's, whose report was not provided, though it appears Dr. Kwok had it in hand. It was, however, not filed with the court, or if it was, it was never referred to.
- [48] After his employment with NORR was terminated in April 2014, Hossain claims he sought employment throughout the country, ultimately locating employment in Halifax, where he had attended university and had lived for several years before moving to Toronto. The earlier connection to Halifax does not emerge from Hossain's evidence, at least not to any portion of it that I was taken to. I located it in the history Hossain gave Dr. Kwok, as quoted by him in his report.
- [49] Hossain obtained a position with NTT Data in May 2015. There, he earns a gross income of \$60,000 per year, and is eligible for *variable incentive pay* as part of the Consultant Incentive Plan. There is no evidence from Hossain about how that operates, how much additional income he can and has earned through it and if he earned nothing more, why that was the case. It is too early for Hossain to have produced a tax return to substantiate his actual earnings with NTT.
- [50] Hossain states that only he is working at this time as his wife is now at home with their baby. It is not clear what the plan is for her entry into the work force; whether she is fluent in English; if she has family in Canada who can help with the baby if she chooses to work.
- [51] Though \$60,000 is not a significant salary, it is also one that many Canadians live on. Hossain now lives in Halifax, with lower housing costs, so a higher salary and an overall lower cost of living than he had while in Toronto.
- [52] This is exemplified by Hossain's current living situation. He signed a one-lease lease, renewable yearly or monthly. His rent is apparently less than \$900 per month. The photos of the premises located in Hossain's material show a nice clean rental unit with a view of the harbour.
- [53] What Hossain gets for the rent he pays remains unclear. In a chart he prepared which shows his anticipated expenses as well as those incurred, he lists that he paid \$1466 for rent in June 2015, (which could represent first and last month rent but that is not explained), but he then paid \$799 for July; \$909 for August and \$879 thereafter. Again, this is not explained.
- [54] Hossain's counsel tried to explain during submission that the rent must have increased from \$799 as it probably includes parking. If that is the case why does Hossain say he anticipates \$50 for parking in future months? This is also not reflected in the one-year lease signed by Hossain. This shows rent of \$799 only, and indicates that he did not elect to also lease parking or a locker.

- [55] Hossain appears to have spent in excess of \$2300 to furnish the Halifax apartment, although he moved personal belongings from Toronto using Kingsway Van Lines. The item on his TD VISA statement shows he paid them \$649 on June 15, 2015. This would have been a relocation expense he could pass on, and likely did, to his new employer.
- [56] Among his expenses, Hossain lists restaurants and money transfers to his mother. He also lists airline tickets, but in view of the amounts listed (\$261.11; \$346.79) these could not represent trips back to Bangladesh. There is no evidence about where Hossain was going or why, however his VISA statements show that he incurred an expense to Air Canada of \$344.79 on June 8, 2015, likely when he moved to Halifax from Toronto. As he was compensated for his moving expenses, I am unclear why that was included as an expense if it was one he passed on to his employer.
- [57] Again, from my review of the materials included in Hossain's record but not referred to in evidence or submissions, it appears the amount of \$261.22 represents a one-way ticket for someone named Mosammat Kohinoor, for a trip taken on November 14, 2015 from Newark to Halifax. There is no evidence indicating who this person is and no mention of Hossain on this itinerary. There is also no evidence explaining why Hossain claims he paid for this flight or why. The itinerary shows that the traveler needed a wheelchair. The timing of this one-way trip coincides with the birth of Hossain's baby.
- [58] All of these evidentiary mysteries makes it difficult to assess Hossain's net worth.
- [59] Hossain purchased a car for \$4900. He paid \$902 for the "car registration"; a further \$76 to join CAA; and \$356 for car maintenance, all in August 2015. He keeps and pays for two cell phones one with a Toronto number, the other with a Nova Scotia area code.
- [60] One of Hossain's major expenses involves servicing his debt load. Though, objectively, it is not a huge amount, in the context of what he earns, it is significant. At the time he finalized his record, Hossain owed \$12,868 on one MBNA account and a further \$13,330 on a second, both at a 19.99% interest rate. There was also an outstanding balance on his AMEX card of \$2,735. The interest rate on this card is also 19.99%.
- [61] Further, Hossain owes \$2,684 on a TD line of credit at 10.35% interest, so his total debt load totals \$31,617, or more than half his gross salary. Unfortunately, Hossain has failed to explain when and why these multiple debts were incurred and why he failed to use his line of credit, which carries a far lower interest rate, to pay off these higher more costly debts.
- [62] Since moving to Halifax, Hossain has also acquired a Walmart Financial Mastercard, with an interest rate of 21.49%, as well as a TD Classic Travel card. Neither is referred to in his evidence, though he has included some statements with respect to each.

- [63] Notwithstanding these large credit card debts, Hossain apparently continues to rely on credit. His Walmart Financial Master Card statement, for the period September 16 - October 15, 2015 shows that he incurred the following charges at Walmart in that period: \$184.32; \$166.02; \$195.33; \$45.63; \$84.15; \$7.10; \$446.59, with debits of \$3.32 and \$117.27, for a net expenditure of approximately \$717 in that store alone.
- [64] Hossain apparently has assets. He has about \$20,000 in savings, which he has not applied against his debt, and he bought a car for \$4900. Despite what he claims is an impecunious lifestyle, he married after the accident and the couple has already started their family. As already noted, his list of expenses shows that he eats at restaurants and sends money home to his mother.
- [65] While this is admirable, it is unclear why this is necessary, as his father, a former physician, passed away in 2014, so his estate would have devolved to the family by now. Hossain says nothing in his evidence about an inheritance.
- [66] Hossain's wife joined him as planned and their first child was born in November 2015. It is unclear how many trips Hossain took to Bangladesh after the accident and while still employed in Toronto. Is it also unclear how long he stayed away on each occasion and if that was a factor in either or both dismissals.
- [67] Hossain sums up his financial situation by stating that he is impecunious and that he will be financially crippled if required to post security for costs.
- [68] On the basis of the record before me, I do not have a sufficiently clear picture of Hossain's financial status to find that he is impecunious. Though the burden of proof was on Hossain at this stage of the inquiry, he has not made the level of disclosure required to allow the court to reach that conclusion. I am not satisfied that having to post security for costs will render Hossain unable to continue with his litigation.

A BIT ABOUT THE ACCIDENT

- [69] According to Hossain, he and his friend Mohammed, arrived at the Square about 15 minutes before midnight and left within minutes of midnight, having consumed no drugs or alcohol that night.
- [70] The accident occurred as they were leaving the space, when Hossain slipped and fell on *an unmopped (sic) substance on the walkway*. Hossain also conceded that it was very crowded at the Square, as one would expect in view of the occasion. He noted that he and his companion began making their way out *slightly earlier than* the rest of the crowd as he had to work the next morning, New Year's Day.
- [71] Hossain has given several different explanations for how the accident occurred. In his Amended Statement of Claim, his lawyers plead:

*On or about January 2, 2011, the plaintiff Abir Hossain was an innocent pedestrian on the walkway when, suddenly and without warning, he slipped and fell due to a **slippery, defective, irregular and/or unmopped (sic) liquid in the walkway.***

[72] In his affidavit of July 11, 2015, Hossain states that:

*As I made my way towards the exit on Queen Street, **I slipped on a wet substance resulting in my feet slipping out from under my body.** I landed on my left side with all of my weight on my left arm.*

[73] When he was examined for discovery on April 12, 2013, he stated that the substance he slipped on was **most probably water**. He added that *and there was really dim light. Lighting wasn't very....poor lighting there.*

[74] Hossain agreed it had been raining and that the temperatures were above zero. He denied that it rained while he was at the show but according to his evidence he only arrived around 11:45 and left soon after midnight slightly ahead of the other revelers.

[75] Hossain also agreed that there were places in the Square that were wet and slippery. His evidence was as follows:

Most of the places were slippery, most of the roads were slippery, but the place where I was in the Nathan's Phillips Square, the place was....sorry, most of the places...most of the roads were wet, but the place where I was during the Nathan Phillips Square, it was slippery.

[76] He agreed that the concrete surface of the Square was wet and that his vision was not good as he left the Square as it was very dark. It was after midnight on a cloudy night.

[77] Hossain states that, after the accident, his focus was on getting medical attention. Though he notes that it was dark (it was just after midnight) and that he was in tremendous pain, he adds that he did not see any City employees or security people *anywhere close to him.*

[78] City TV/Rogers agreed with the City that they would provide security for the event, secure the event area and monitor event participants, making health and safety for workers and the public a priority.

[79] The City, as the occupier of the Square, had employees on duty to perform clean-up duties but they were unable to say how many or where they were stationed. They also conceded at discovery that they had no formal policies related to clean-up of debris, liquids or substances in public gatherings.

- [80] Though participants had to obtain a wrist band to enter the space, the event was free. The City, however, has no records relating to the attendance figures but agreed that the size of the crowd would expand from about 11 pm until midnight. The City agreed that the more people present, the more difficult it would be for their staff to navigate through the crowds, perform inspections or clean ups.
- [81] As I understand it, the accident occurred as the pair was heading south towards Queen Street, across from the hotel. There were exit gates so there would likely have been an orderly exit from the Square. Hossain does not claim otherwise.
- [82] In view of the temperatures and the rainfall patterns that evening and night, the most likely scenario is that Hossain slipped on water, the result of natural rainfall. No matter how many staff were on duty or what their protocol was for clearing spills or debris, this would have qualified is neither. Nor does it appear to have been icy, so there would have been no cause to dust the surface with sand or salt. Hossain himself notes that the Square had been slippery but not where he was standing for the show. He was therefore aware of this and was bound to take added precautions for his own safety.
- [83] I am unable to conclude that Hossain has a good case on liability on his own evidence. Slip and fall cases are difficult to establish and despite the gaps that the Hossain identified in the defendants' systems, I doubt the results would have been different they filled those gaps. An occupier is not an insurer.
- [84] I have already noted my concerns about his damages and causation. I note, further, that Dr. Kwok identified the plaintiff as suffering from anxiety and depression at the time of his October 2013 report. There may well have been other factors at play that contributed to those feelings and those feelings, in turn, could have impacted on Hossain's ability to or interest in working.
- [85] As a result, I am not satisfied that he has met the onus of showing that he has a good chance of success on the merits nor has he provided any other basis on which the order that is just would be making no order for security.

ORDER

- [86] On the basis of the foregoing, it is ordered that:

1. Hossain **shall post security for costs to the credit of this action within 60 days as follows:**
 - a. **to the defendant, City: in the amount of \$15,000, representing costs incurred to-date and to be incurred up to and including the pre-trial of this action;**

- b. in the event that the matter proceeds to trial thereafter, the City may return for further security. I am not prepared to set the quantum at this stage as there is no consensus as to how long the trial is expected to take;
 - c. the action as against the City is stayed save and except for rights of appeal, until such time as security, as ordered, has been paid;
 - d. security for costs shall also be posted in favour of City TV/Rogers. However, I am unable to provide a quantum at this time in view of how their materials were prepared. I have been given hourly rates and amounts of time spent, leaving it to me to do the math on a per item basis. No tabulation has been provided for actual costs incurred, as the costs of the motion appear to have been included and ought not to have been. The amount used for partial indemnity exceeds the 60% guideline articulated by the Court of Appeal. I don't have the needed hours to go through this and make calculations that ought to have been made by counsel. I expect a more helpful version by February 26, 2016. Upon receipt, I will complete this portion of my order.
2. If the parties are unable to agree as to the costs of this motion, I can be spoken to within 30 days of the release of these Reasons.

(Original Signed)_____

Master Joan M. Haberman

Released: February 11, 2016